

**SOLE SOURCE JUSTIFICATION UNDER SIMPLIFIED PROCEDURES FOR
CERTAIN COMMERCIAL ITEMS IN ACCORDANCE WITH FEDERAL
ACQUISITION REGULATION (FAR) 13.5**

On the basis of the following justification, I hereby approve the use of a sole source proposed contractual action pursuant to the authority of —41 U.S.C. 1901.

Procurement Request Number: 

1. Agency and Contracting Activity

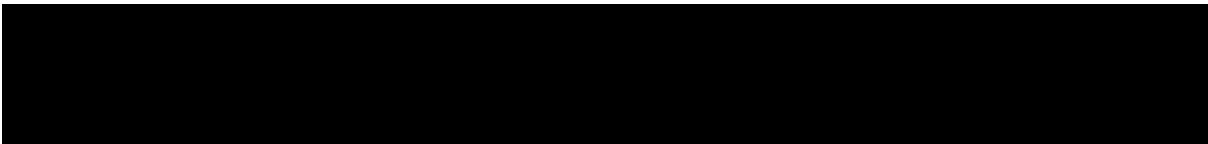
Naval Sea Systems Command contracting activity Northwest Regional Maintenance Center/Puget Sound Naval Shipyard and Intermediate Maintenance Facility, Bremerton, WA proposes to enter into a sole source contract with Curtiss-Wright Fleet Solutions, 1675 Brandywine Avenue, Suite F Chula Vista, CA 919 using simplified procedures for certain commercial items included in FAR subpart 13.5.

2. The nature and/or description of the action being approved.

The contemplated action for approval is the award of a sole source contract to Curtiss-Wright Fleet Solutions for an on-site technical representative to perform repairs on No. 2 High Pressure Air Compressor (HPAC) to Original Equipment Manufacturer (OEM) standards, in accordance with proprietary drawings and specifications. Curtiss-Wright is the OEM of the HPACs currently installed on the Naval Asset pertaining to this contract. Curtiss-Wright Fleet Solutions are the only available source with design drawings, specifications, and experience required to restore the compressors to OEM standards.

3. A description of the supplies and/or services required, including the delivery schedule and/or the period of performance (inclusive of all option periods), and the estimated dollar value of the acquisition.

PSNS&IMF, in support of a US NAVY NIMITZ class Aircraft Carrier, as part of CASREP  urgent ship repair and maintenance, requires OEM repairs/replacements to quantity (1) HPAC. Curtiss-Wright Fleet Solutions is to perform the OEM technical repair; provide all parts and supplies not available through the Government Stock System; deliver and install all replacement parts; complete inspection and operational testing of the Ship's equipment in accordance with the Original Equipment Manufacturer (OEM) drawings and OEM repair standards. All repairs must be completed, and unit successfully restored and tested in order to return the ship back to the Fleet and meet mission scheduling. The Government's minimum needs have been verified by the certifying technical and requirements personnel.



4. The statutory authority permitting sole source.

10 U.S.C 3204(a)(1): Only one responsible source and no other supplies will satisfy agency requirement (FAR 6.302-1).

5. A statement demonstrating the unique qualifications of the proposed contractor or the nature of the action requiring use of the authority.

Pursuant to FAR 6.302-1, the requirement described above has been determined to be achievable by only one source. Existing unit is a Curtiss-Wright N30NL-4, N30NL-4A, or N30NL-3E compressor (HPAC). Curtiss-Wright is the only source with proprietary design drawings and specifications required to restore the No. 2 HPAC. Curtiss-Wright has the technical expertise to perform required repairs and testing. All components and parts are proprietary to Curtiss-Wright Fleet Solutions and cannot be purchased from any vendors other than Curtiss-Wright. These complex and highly engineered units are mandated by NAVSEA for aircraft carrier applications. All parts must be OEM provided to ensure proper operation of the units.

6. A description of efforts made to ensure offers/quotes are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized in FEDBIZOPPS (as required by FAR 5.2) and, if not, which exception under 5.202 applies.

In accordance with FAR subparagraph 5.203(a)(1), this requirement will be synopsisized on SAM.GOV publicizing the Government's intent to sole source for five days. No other efforts were made to ensure offers/quotes were solicited from as many potential sources as practical as Curtiss-Wright is the OEM. Any further efforts would have yielded no feasible results.

7. The anticipated dollar value of the proposed acquisition, including options if applicable, and a determination by the contracting officer that the anticipated cost to the government will be fair and reasonable.

The Contracting Officer has determined that the anticipated cost to the Government for the supplies/services covered by the J&A will be fair and reasonable. The Contracting Officer determines that the anticipated price to the Government will be fair and reasonable based on historical pricing available, the Government's independent estimate, and other methods allowed under FAR 13.106-3 to make a determination of fair and reasonable pricing.

8. A description of the market research conducted and the results or the reason market research was not conducted.

For the reasons set forth in Paragraph 5, PSNS&IMF has no plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, PSNS&IMF will assess whether competition for future requirements is feasible.

9. Any other facts supporting the use of sole source.

Curtiss-Wright maintains the technical knowledge and demonstrates competency in supporting shipboard assets by analyzing repair requirements and making maintenance recommendations; and possess the ability to access OEM proprietary information, procedures, and engineering support.

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.

No additional sources expressed in writing an interest in providing repair services to the Curtiss-Wright Compressors on board of a US Navy NIMITZ class Aircraft Carrier.

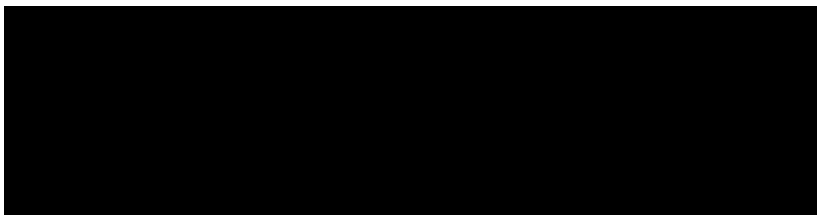
11. A statement of any actions the agency will take to remove or overcome any future barriers to competition.

For the reasons set forth in Paragraph 5, PSNS&IMF has no plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, PSNS&IMF will assess whether competition for future requirements is feasible.

Certification

Technical Review:

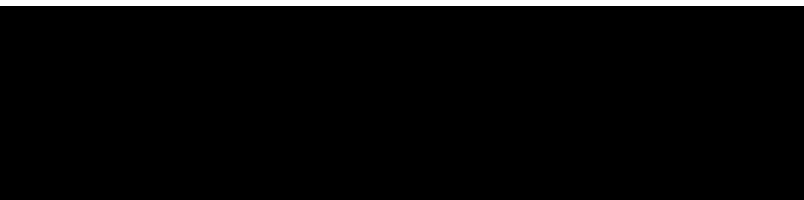
I certify that the facts and representations under my cognizance that are included in this justification and that form a basis for this justification are complete and accurate.



Date

Contracting Officer:

I certify that this justification is accurate and complete to the best of my knowledge and belief.



Date